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CHAPTER XXI.

Orders of January, 1851.

Orders of January 1851, extending the practice under the 77th Order of May, 1850, and for other purposes :—

Whereas it is expedient to extend the principle of the Order comprised in the General Orders of the 7th of May, 1850, numbered LXXVII., and to further regulate the practice thereunder. The provisions of the Order comprised in the General Orders of the 7th of May, 1850, numbered LXXVII., shall be applicable in any of the following cases, that is to say, in any case where the plaintiff is—

Jan. 17, 1851.
The 77th Order
of May, 1850,
extended to
certain cases,
on the principle
of the English
Orders of
April, 1850.

1. A creditor upon the estate of any deceased person seeking payment of his debt.

2. A legatee under the will of any deceased person seeking payment or delivery of his legacy.

3. A residuary legatee, or one of the residuary legatees of any deceased person, seeking an account of the residue and payment or appropriation of his share therein.

4. The person or any of the persons entitled to the personal estate of any person who may have died intestate, and seeking an account of such personal estate, and payment of his share thereof.

5. An executor or administrator of any deceased person seeking to have the personal estate of such deceased person administered under the direction of the Court.

6. A legal or equitable mortgagee, or judgment creditor, having duly registered his judgment, or a person entitled to a lien for security for a debt, seeking foreclosure or sale, or otherwise to enforce his security.

7. A person entitled to redeem any legal or equitable mortgage, or any charge or lien, seeking to redeem the same.

8. A person entitled to an account of the dealings and transactions of a partnership, dissolved or expired, seeking such account.

9. A person entitled to an equitable estate or interest, and seeking to use the name of his trustee in prosecuting an action for his own sole benefit.